Trading Under the AfCFTA – a Guide for Nigeria

Nigeria belongs to two Regional Economic Communities (RECs); ECOWAS and CEN-SAD. ECOWAS is a customs union, and intra-ECOWAS trade takes place under the ECOWAS Trade Liberalisation Scheme (ETLS), under the regulations of the ECOWAS Customs Code. CEN-SAD does not have a free trade area.

ECOWAS

Benin, Burkina Faso, Côte d'Ivoire, The Gambia, Ghana, Guinea, Guinea Bissau, Liberia, Mali, Mauritania, Niger, Nigeria, Sierra Leone, Senegal and Togo

Non-ECOWAS/ CEN-SAD countries

The Economic Community of West African States (ECOWAS), comprising 15 member states, is one of three regional economic communities (RECs), recognised by the African Union, to have established a **Customs Union** (the other RECs are SACU and EAC; in addition, CEMAC, which is not an AU-recognised REC, has also established a customs union). The ECOWAS Customs Union entered into force in January 2015, with a **common external tariff (CET)** on goods entering the common customs territory. Given that it is part of the ECOWAS Customs Union, **Nigeria will continue to trade in goods with other ECOWAS member states under the ECOWAS Trade Liberalisation Scheme, with regulations of the ECOWAS Customs Code**.

ECOWAS has submitted a tariff offer for trade in goods under the AfCFTA on over 8 000 tariff lines. This was included in the Ministerial Directive on Provisional Schedule of Tariff Concessions on 26 October 2021. Trade in services is not covered by ECOWAS, so each member state will submit its own commitments to the AfCFTA Secretariat.

Nigeria is also a member of the **Community of Sahel–Saharan States (CEN-SAD)**. CEN-SAD does not have a trade regime. All CEN-SAD members are also members of other African regional economic communities.

➡ **New preferential trade opportunities for Nigeria under the AfCFTA will be with *non-ECOWAS* countries in Southern, East, West, North and Central Africa with whom Nigeria does not trade under any existing FTA or CU rules.**

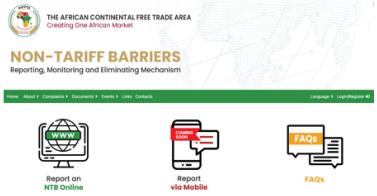
AfCFTA Operational instruments

The *AfCFTA e-tariff book* is a digital platform containing the tariff schedules with applicable tariff rates for all AfCFTA State Parties based on the WCO 6-digit Harmonised System (HS). Goods are classified in three Categories: i) Category A – non sensitive products (90% of tariff lines), ii) Category B – sensitive products (7% of tariff lines), and iii) Category C – products that are excluded from liberalisation (3% of tariff lines).

http://etariff.au-afcfta.org/

RULES OF ORIGIN
MANUAL

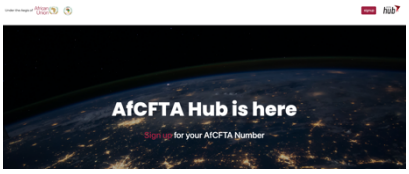
The *AfCFTA Rules of Origin Manual* serves as a guide to the operationalisation of Annex 2 on Rules of Origin. It provides detailed information on how to determine the national origin of goods so that they can be traded between State Parties under the AfCFTA preferential tariff rates. https://au-afcfta.org/rules-of-origin/



The *AfCFTA Online Mechanism for Reporting, Monitoring and Elimination of NTBs* is a portal for online reporting of identified non-tariff barriers (NTBs), including for reporting via SMS. Reported NTBs and the status of their resolution can be tracked. https://tradebarriers.africa/

The *Pan-African Payment and Settlement System (PAPSS)*, developed by the African Export-Import Bank (Afreximbank) in collaboration with the African Union and AfCFTA Secretariat, is a cross-border payment and settlement infrastructure for transactions across Africa. PAPSS allows for payment and settlement using local currencies.

https://papss.com/



The AfCFTA Secretariat has partnered with AfroChampions, governments and industry to launch the *AfCFTA Hub* platform. The AfCFTA Hub aims to simplify AfCFTA rules for SMEs and startups, level the playing field in e-commerce & e-logistics so everyone can participate and benefit from the stated objectives of the AfCFTA and facilitate the integration of African economies.

https://hub.au-afcfta.org/

Nigeria's participation in the AfCFTA

Nigeria signed the AfCFTA Agreement on 7 July 2019, ratified the Agreement on 3 December 2020, and deposited its instrument of ratification on 5 December 2020. Nigeria was among the second group of countries to express interest in participating in the Guided Trade Initiative, launched by the AfCFTA Secretariat in October 2022.

Nigeria began trading under the GTI on **16 July 2024**. The first consignments of goods was shipped by 10 companies to five African countries across the East, Central, and North African regions: Cameroon, Kenya, Algeria, Uganda and Egypt. The consignments included ceramics, textiles, cables, smart cards, black soap, and Shea butter. The products were shipped from the Apapa Port in Lagos State during an official ceremony to mark the inauguration of the Guided Trade Initiative in Nigeria. The first AfCFTA Certificate of Origin – required for trade to take place under the AfCFTA GTI – was awarded to a female entrepreneur, Mrs. Chinwe Ezenwa, MD of Lelook Bags. Nigeria's inaugural shipment to Kenya (and second shipment under the GTI) took place in November 2024 after a short delay, marking a significant milestone for Lucky Fibres, a Lagos-based manufacturer which produces hair products, rugs, and carpets.

Certificate of Origin

Responsibility for the implementation of the AfCFTA Agreement lies with the Nigeria Customs Service, and other agencies. As a supplement to the Customs Authority, His Excellency, President Muhammadu Buhari, in December 2019 established the National Action Committee on the African Continental Free Trade Area (NAC-AfCFTA) to execute a wide range of actions and programs at regional and continental levels to prepare Nigeria for AfCFTA implementation. Their mandate includes the development of Nigeria's AfCFTA Strategy and mobilisation of all relevant public and private parties to realise the mission and strategic objectives of the AfCFTA.

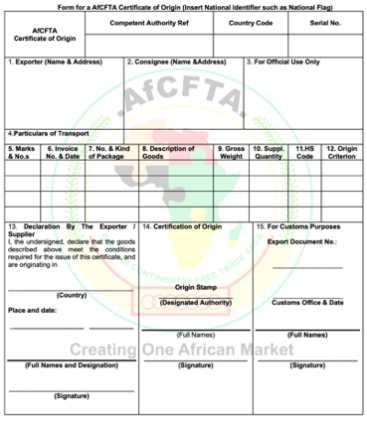
Only goods that meet the AfCFTA rules of origin will qualify for AfCFTA preferences; that is, for a good sent from Nigeria to qualify for AfCFTA preferences, it must be shown to have been made from materials produced in Africa. The Certificate of Origin verifies that the exported goods qualify for reduced tariffs under the AfCFTA. An 'Origin Declaration', i.e., an appropriate statement as to the origin of the Goods made – in connection with their exportation by the manufacturer, producer, supplier, exporter or any other competent person – on the commercial invoice or any other document relating to the good(s), can also be made, either by an Authorised Economic Operator (AEO) or by an exporter who is not authorised, for consignments with a limited invoice amount of US$5 000.

The exporter, or the authorised economic operator, must complete all details required for a complete declaration of the correctness of the application for a Certificate of Origin. The goods must be identified by giving a full commercial description to determine the appropriate HS Code. The World Trade Organisation certified harmonised system is to be used as each State Party undertakes to adopt customs tariffs nomenclatures and statistical terminologies that conform to this system.

Authorised (economic) operators

An 'authorised economic operator' may be any entity that plays a role in the goods supply chain (exporters, importers, customs brokers, freight forwarders, transport providers, etc.). To be designated an AEO, the entity must apply for and be subject to an application and verification process by the revenue authority. The aim of achieving AEO status is to promote trade facilitation and provide for seamless movement of goods across borders through secure international trade supply chains with the use of risk management and modern technology. Nigeria has established a **national AEO programme** (following a pilot phase beginning in April 2024) which was officially launched in February 2025 as well as being party to the **ECOWAS regional AEO Programme**.

Under the AfCFTA, the specified criteria to qualify as an "Authorised Operator" shall be related to compliance, or the risk of non-compliance, with requirements specified in a State Party's laws, regulations, or procedures (Annex 4, Article 13(2)). State Parties are encouraged to develop Authorised Operator schemes based on international standards, where such standards exist, except when such standards would be an inappropriate or ineffective means for the fulfilment of the legitimate objectives of the AfCFTA (Annex 2, Appendix 1: Article 13(6)).

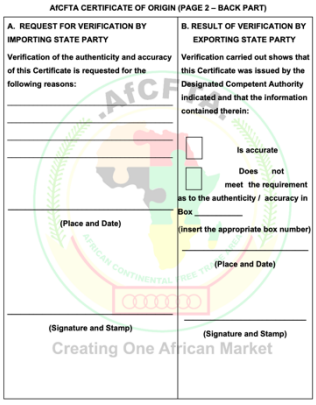

Form for a AfCFTA Certificate of Origin (Insert National Identifier such as National Flag)

AfCFTA Certificate of Origin	Competent Authority Ref	Country Code	Serial No.
1. Exporter (Name & Address)	2. Consignee (Name &Address)	3. For Official Use Only	
4.Particulars of Transport			

5. Marks & No.s	6. Invoice No. & Date	7. No. & Kind of Package	8. Description of Goods	9. Gross Weight	10. Suppl. Quantity	11.HS Code	12. Origin Criterion

13. Declaration By The Exporter / Supplier	14. Certification of Origin	15. For Customs Purposes
I, the undersigned, declare that the goods described above meet the conditions required for the issue of this certificate, and are originating in: (Country) Place and date: (Full Names and Designation) (Signature)	Origin Stamp (Designated Authority) (Full Names) (Signature)	Export Document No.: Customs Office & Date (Full Names) (Signature)

Creating One African Market


AfCFTA CERTIFICATE OF ORIGIN (PAGE 2 – BACK PART)

A. REQUEST FOR VERIFICATION BY IMPORTING STATE PARTY	B. RESULT OF VERIFICATION BY EXPORTING STATE PARTY
Verification of the authenticity and accuracy of this Certificate is requested for the following reasons: (Place and Date) (Signature and Stamp)	Verification carried out shows that this Certificate was issued by the Designated Competent Authority indicated and that the information contained therein: ☐ Is accurate ☐ Does not meet the requirement as to the authenticity / accuracy in Box (insert the appropriate box number) (Place and Date) (Signature and Stamp)

Creating One African Market

Obtaining a Certificate of Origin

Three steps are required to obtain the AfCFTA Certificate of Origin in Nigeria: Request for Certificate of Origin, Pay for Certificate of Origin, and Obtain Certificate of Origin. The application process and required documents for the AfCFTA Certificate of Origin can be found on the Nigeria Trade Portal: https://nigeriatradeportal.fmiti.gov.ng/procedure/554?l=en. See also the Notes for Completing the AfCFTA Certificate of Origin (AfCFTA Agreement, Annex 2, Appendix I: AfCFTA Certificate of Origin (Article 19(1)(a)): https://bit.ly/4cYpwy7

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